

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN AUSTRALIA

Complete Community Opposition How-To

INTRODUCTION & FRAMEWORK

Community action decides project outcomes in Australia. The country's most famous environmental victory did not come from a boardroom or a minister acting alone — it came from a wild river, a blockade, and a campaign that refused to quit. In the summer of 1982–83, the Tasmanian Wilderness Society, led by Bob Brown, mounted a blockade at Warners Landing on the Gordon River to stop the Hydro-Electric Commission from damming the Franklin, one of the last wild rivers on the continent. Some **1,217 people were arrested** over that summer. The campaign turned "**No Dams**" into a national slogan, made the Franklin an issue in the 1983 federal election, and forced a newly elected federal government to act. When Tasmania refused to stop, the Commonwealth passed a law and the matter went to the High Court. On 1 July 1983, in *Commonwealth v Tasmania* — the **Tasmanian Dam Case** — the Court held, four to three, that the federal government could use its external-affairs power to protect a World Heritage area, and **the dam was stopped**. A river was saved because ordinary people put their bodies on the line, built a movement, and reached the one lever — the federal power over matters of national significance — that a determined state could not override.

The Franklin shows the pattern that wins in Australia, and it also shows the distinctive shape of the Australian system: a project a state wants can sometimes be stopped by the Commonwealth, when a matter of national environmental significance is engaged, and the courts will enforce that line. But it shows something else too — that the win came only because a long, disciplined, visible campaign made the issue impossible for a federal government to ignore. The law was the last step, not the first. The blockade, the election, the national movement came first.

Most communities, though, do not know HOW to make opposition effective. They lodge one submission and go home. They assume the project "will be approved anyway," and so they never test whether it needed federal approval, never seek judicial review, never appeal on the merits, never build the campaign and the public pressure that change a decision. They generate a burst of outrage without a plan to sustain it. They gather a crowd and lose it to exhaustion. The gap between a community that stops a project and one that watches it get built is rarely courage or numbers. It is method.

This guide shows what actually works — inside the Australian system.

The Strategic Framework

Effective opposition campaigns follow the same underlying pattern, whichever project they face:

STEP 1: TARGET IDENTIFICATION	(find the decision and its weak point)
STEP 2: DOCUMENTATION	(build proof of harm and of every defect)
STEP 3: LOCAL OPPOSITION	(organise a campaign that lasts)
STEP 4: LEGAL CHALLENGES	(federal triggers, judicial and merits review, native title)
STEP 5: MEDIA STRATEGY	(make the fight visible and impossible to ignore)

These steps operate **simultaneously, not in sequence**. Documentation feeds the legal case and the media story at once; the campaign sustains the pressure that decision-makers and courts respond to; a court challenge is a headline and a headline strengthens a challenge. The community that runs all five together, each reinforcing the others, is the one that wins. The Franklin campaign did exactly this — it documented the river's value, organised a mass movement, pursued the political and legal levers, and made its fight a national and international story, all at once.

The Levers That Are Distinctly Strong Here

Every country's system has its own pressure points. Australia's give communities a distinctive set:

- **The federal trigger.** Where a project affects a **matter of national environmental significance** — a World Heritage area, a Ramsar wetland, a nationally threatened species, the Great Barrier Reef — the Commonwealth's **EPBC Act** requires federal assessment and approval, and the Commonwealth can refuse or condition a project a state wants. This is the Franklin lever, and it is Australia's most distinctive.

- **Open standing for judicial review.** The EPBC Act (section 487) gives **extended standing**: an individual or group that has been engaged in environmental protection for two years can seek judicial review of a federal decision, without having to show they are personally affected — a genuinely open door to the courts.
- **Merits review in the states.** In several states a community can challenge not just the legality but the **merits** of a planning approval in a specialist court or tribunal — and communities have won, including on climate grounds.
- **Native title and cultural heritage.** Where a project affects Aboriginal or Torres Strait Islander land, native-title holders have a **right to negotiate**, and cultural-heritage law can protect significant places — real process levers, though not, as this guide will be honest about, a veto.
- **A strong campaigning tradition.** Australia has a deep, effective tradition of environmental campaigning — the Wilderness Society, the Australian Conservation Foundation, the state Environmental Defenders Offices that provide public-interest legal help — that a community can plug into.
- **Freedom of information and public submissions.** Federal and state FOI laws and mandatory public-comment stages give communities the documents and the entry points a case is built on.

What This Guide Will Not Pretend

It would be dishonest to promise these levers always prevail. Australia's national environmental law is weak in ways its own government-commissioned review has condemned: the EPBC Act is largely a **self-reporting** system, the Minister has **wide discretion**, the overwhelming majority of projects referred are approved, and the 2020 **Samuel Review** found the Act was "not delivering for the environment." Native title is a right to negotiate, not to refuse, and the destruction of the 46,000-year-old Juukan Gorge rock shelters in 2020 showed how weak heritage protection can be. State governments frequently champion mining and gas, the Commonwealth approves most coal and gas projects put to it, and there is no "climate trigger" in the federal law. The Adani/Carmichael coal mine was fought through the courts for years and still proceeded. This guide takes those facts seriously, names them plainly, and shows you how to win anyway — and, where an outright, permanent stop is not realistic, how to secure the delay, the conditions, the exposure, and the worn-down proponent that, in a hard fight, are often what winning actually looks like.

HOW THE SYSTEM WORKS

You cannot pull a lever you cannot see. Before you spend a single weekend, map who actually decides your project's fate, at which level, and where along that path the decision is weakest.

The Levels of Decision

An Australian development project usually runs a gauntlet of approvals across two levels of government, and each is a place to intervene.

State and territory. For most projects this is the primary level. The **state or territory government** — through its planning and environment departments — runs the main environmental-impact assessment, grants the development approval or mining lease, and issues the licences. State law is where most projects live or die, and several states offer a **specialist court or tribunal** (such as the New South Wales Land and Environment Court) where a community can object and, in some cases, appeal on the merits.

Commonwealth (federal). Cutting across the states is the **EPBC Act**. If a project is likely to have a significant impact on a **matter of national environmental significance**, it must be **referred** to the federal Environment Minister, assessed, and approved federally as well — a second, independent approval the state cannot grant and the Commonwealth can refuse. This is the Franklin lever: the federal power that can stop a state's project. Not every project triggers it, so the first question is always whether yours does.

Local government. Councils control local planning and land-use decisions for smaller projects and some aspects of larger ones, and are close and responsive.

Aboriginal and Torres Strait Islander rights. Cutting across all of these: where a project affects native-title land or Aboriginal cultural heritage, a separate set of rights and processes applies — the **right to negotiate** under the Native Title Act and state and federal heritage laws.

The Journey of a Project

A typical project moves from a proposal, to a state environmental-impact assessment with **public exhibition and submissions**, to (if a national matter is engaged) an **EPBC referral** and federal assessment with its own public comment,

to the state and federal approvals and their conditions, through any native-title and heritage processes, to the licences, and only then to construction. **Every one of those stages is a door you can put your foot in.** The earliest doors are the cheapest and widest: a submission during public exhibition, a comment on the EPBC referral, evidence that the project needs federal assessment it is trying to avoid. The later doors — judicial review of an approval, a merits appeal, a native-title or heritage claim — are more demanding but real, and communities walk through them and win. Find out exactly where your project stands on this path today; that tells you which door is open now.

Follow the Money and the Approvals

Behind the permits stand a proponent, its financiers, its insurers, its customers, and the ministers and departments who approved it. A mining or gas project is often run by a listed company — the Franklin's dam was a state utility, but today's proponents answer to shareholders, lenders, insurers, and markets a reputational blow can reach, and Australian campaigns have had real success pressuring the banks and insurers behind coal and gas. Trace who owns the proponent, who funds and insures it, who buys its output, and which ministers and departments granted its approvals. Two questions unlock most Australian fights: **Does this project engage a matter of national environmental significance — and was that honestly assessed?** and **Did the decision-maker follow the law, and can that be tested in court or on the merits?** Mapping the chain also shows where the project is exposed that the government is not: a listed proponent answers to shareholders and to lenders and insurers with their own environmental and climate policies; a customer with a public brand does not want to be named alongside a contested mine. These are pressure points a supportive minister does not control, and Australian campaigns have used them to devastating effect.

The Overseers

Finally, know the bodies that watch the deciders, because they are levers too. The **courts** — the Federal Court, the state supreme and specialist environment courts, and ultimately the **High Court**, which stopped the Franklin dam — enforce the law and, in some states, review the merits. The **Auditors-General** and parliamentary committees scrutinise public decisions and money. The **Environmental Defenders Offices** provide public-interest legal representation to communities. And FOI laws, an ombudsman in each jurisdiction, and (for some matters) integrity and anti-corruption commissions provide further avenues. Each overseer is a separate front, reachable with the same evidence, and a project rarely survives pressure on several at once. You do not have to choose one door: the same well-documented file can go to the assessing department, the federal environment department, a court, an auditor, an integrity body, a bank, and the press at once, and each front that opens makes the others harder to close. A campaign's power comes not from any single lever but from applying several at the same time, so that the proponent and the government must defend on every side.

QUICK REFERENCE: SUCCESS RATES

Before you commit months of effort, calibrate honestly. These figures are **directional, not guarantees** — patterns drawn from how Australian and comparable campaigns tend to go, not a controlled study. The decisive variables are whether a **matter of national environmental significance** is engaged (which opens the federal lever), whether your state offers **merits review**, whether the assessment has real defects, whether native title or heritage is involved, and whether the public and the money behind the project can be reached. Where a national matter is genuinely in play and the community organises, Australia's levers are strong; where no federal trigger exists and a state champions the project, discount the figures and think in terms of delay, conditions, exposure, and financier pressure. Use the table to plan, not to predict: it tells you which combinations have historically done the most work and where to put scarce time first. The single most important reading is that no row on its own is as strong as the rows run together — the community that documents, organises, litigates, reaches the money, and publicises at once consistently outperforms the one that pins its hopes on any single move.

Individual Step Success Rates

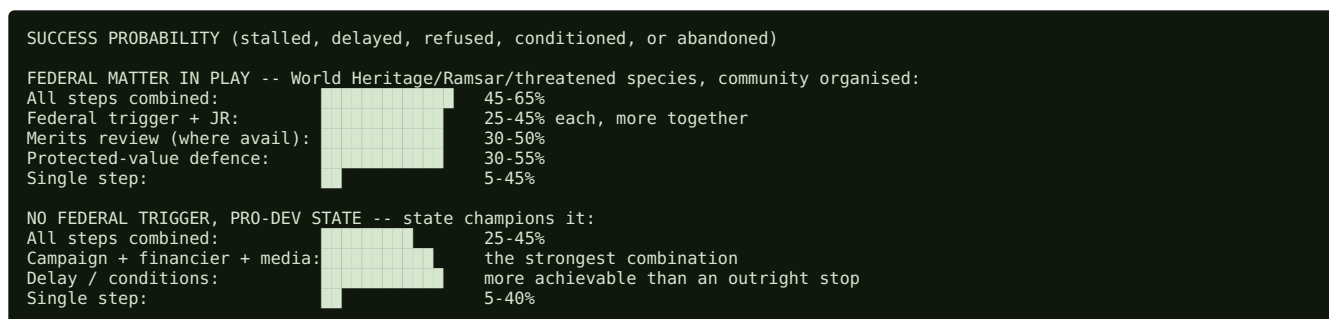
Approach	Success Rate	Timeline	Cost	What "Success" Means
Documentation only	5-10%	1-3 months	low	Basis for every other step
Submission during public exhibition	15-35%	during assessment	low	On record; conditions or a redo
Forcing an EPBC referral / federal assessment	25-45%	months	low-moderate	Second approval; project delayed, refused, conditioned
Judicial review (federal, s487 standing)	25-45%	6-24 months	moderate	Decision quashed; remade properly

Merits review (state court/tribunal)	30-50%	6-24 months	moderate	Approval refused or conditioned on merits
Native title right to negotiate	20-40%	ongoing	low-moderate	Delay; agreement; conditions (not a veto)
Cultural-heritage protection	20-45%	6-24 months	low-moderate	Significant place protected; project altered
World Heritage / Ramsar / threatened-species defence	30-55%	6-36 months	moderate	Project barred from or conditioned on protected values
Council / local planning action	25-45%	3-18 months	low	Local block; conditions; delay
Financier / insurer / customer pressure	25-50%	6-48 months	low	Funding or insurance withdrawn; proponent falters
Media & public campaign	25-50%	ongoing	low	Political cost raised; decision shifts
All steps combined (federal matter in play)	45-65%	12-36 months	moderate	Stalled, refused, conditioned, or abandoned
All steps combined (no federal trigger, pro-dev state)	25-45%	12-48 months	moderate	Delayed, exposed, conditioned; sometimes stopped

Key insight: every step together beats any single one, and Australia's real strengths are distinctive — the **federal trigger** that can override a state, **open standing** to seek judicial review, **merits review** in several states, **native-title and heritage** processes, a **deep campaigning tradition** with public-interest lawyers, and effective **financier and insurer pressure** on coal and gas. Its constraints are a **weak, self-reporting national law** with wide ministerial discretion, **most projects approved**, **native title that is not a veto**, **patchy heritage protection**, **pro-development states**, and **no climate trigger**.

A note on cost: documenting, organising, lodging submissions, seeking FOI, and pressing for a federal referral are inexpensive, and the Environmental Defenders Offices and pro-bono lawyers carry public-interest cases. Judicial and merits review cost more and carry some risk as to costs, though extended standing and public-interest costs orders help. The expenditure that most changes outcomes is committed legal support and the reach of the media, campaign, and financier pressure — exactly what the Franklin marshalled in its era, and what modern anti-coal campaigns marshal now.

Effectiveness Visualization



How to read this honestly. The levers that most change outcomes in Australia are **the federal trigger and the courts** where a national matter is engaged, and **the campaign, the money, and the media** everywhere. The Franklin shows the ceiling: a national movement reached the one federal lever a state could not override, and the High Court enforced it. The floor is set by the weakness of the national law and by pro-development states pushing projects with no federal trigger. Most Australian fights sit between them, and the honest lesson is that the federal power, open standing, merits review, and financier pressure are real and distinctive levers — but against a project with no national trigger that a state champions, the realistic win is often delay, conditions, exposure, and a proponent worn down, as much as an outright, permanent stop.

Step Importance Ranking (When All Combined)

1. **The federal trigger** — Australia's distinctive lever; a national matter that forces federal assessment and can stop a state's project, as it did at the Franklin.
2. **The organised, lasting campaign** — the movement that makes the issue impossible to ignore and reaches the money behind the project.
3. **The courts** — open-standing judicial review of federal decisions and merits review in the states, which have quashed and refused approvals.
4. **The protected values and rights** — World Heritage, Ramsar, threatened species, native title, and cultural heritage a

project must lawfully account for.

5. **Financier, insurer, and public pressure** — the banks, insurers, customers, and media that raise the cost of proceeding.

What Australian Campaigns Actually Show

A few patterns recur. **A movement can reach a lever a state cannot override** — the Franklin did, through the federal power. **Open standing lets communities into court** — environmental groups routinely seek judicial review of federal decisions. **Merits review bites** — state courts have refused projects, including on climate grounds. **Financier pressure works** — banks and insurers have walked away from coal and gas under public pressure. **Protected values hold** — World Heritage and Ramsar defences have stopped or reshaped projects. **But the national law is weak**, most projects are approved, native title is not a veto, heritage protection failed catastrophically at Juukan Gorge, and projects like Adani were fought for years and still built. The through-line: **check for the federal trigger; organise a lasting campaign; document every defect and protected value; use the courts, the rights, and the money; reach the public — and expect a long fight measured in delay, conditions, and exposure as much as an outright stop.**

STEP 1: TARGET IDENTIFICATION

Every effective campaign begins by finding the exact decision that governs the project — and its weakest point. Vague opposition to "the mine" goes nowhere; opposition to "the state development approval granted on an assessment that understated the impact on a nationally threatened species, for a project that should have been referred to the Commonwealth and was not" is a case. Answer five questions.

The Five Core Questions

1. **What exactly is proposed, and under what approvals?** Name the project, the proponent, and the specific approvals it needs or holds — the state development approval or mining lease, any EPBC approval, the licences. Each instrument has conditions and a paper trail, and each is a place a defect hides.
2. **What stage is it at?** Proposal? Environmental assessment on public exhibition? EPBC referral lodged? Approvals granted? Under construction? The stage dictates the door. If the assessment is on exhibition, your submission and your evidence are cheap and powerful. If it is approved, judicial or merits review may be the route.
3. **Does it trigger a matter of national environmental significance?** This is the pivotal Australian question. Does the project affect a **World Heritage or National Heritage place, a Ramsar wetland, a nationally listed threatened species or ecological community, a migratory species, the Great Barrier Reef, or a large coal or gas development's water resources**? If so, it must be referred to and assessed by the Commonwealth — and if the proponent has not referred it, forcing that referral is itself a powerful move. The test is whether the project is likely to have a *significant* impact on the protected matter, and because the system lets proponents self-assess that question, they have every incentive to conclude it does not — so a community that can show, with evidence, that a significant impact is likely can force an assessment the proponent tried to avoid, and can later argue that proceeding without one is unlawful.
4. **Is native title or cultural heritage engaged?** Does the project sit on native-title land (triggering the right to negotiate) or affect Aboriginal or Torres Strait Islander cultural heritage or sacred sites? These are separate, real processes, and consultation done badly is a defect. They are also led by the Traditional Owners themselves, not by others on their behalf, and the campaign's role is to support and amplify that leadership, never to speak over it.
5. **Who decides, who benefits, and who is watching?** Which ministers and departments (state and federal) grant the approvals; who owns, funds, and insures the proponent and buys its output; which council and which Traditional Owners are engaged; and which campaign groups, public-interest lawyers, press, and financier-facing allies can be reached. This maps your levers and your audiences at once.

A Worked Example

Suppose a company proposes an open-cut coal mine near a wetland and threatened-species habitat, in a state that supports it, with a state assessment on public exhibition.

Working the five questions: the project needs a **state development approval** (in assessment — lodge a submission and request the documents), and, because of the wetland and the threatened species, it likely needs an **EPBC referral and federal assessment** (check whether it has been referred; if not, press for it). It is **on exhibition**, so submissions are the live, cheap route now, with judicial or merits review held in reserve. The **wetland and species** are potential **matters of**

national environmental significance — the federal trigger. **Native title or heritage** may be engaged nearby. The state's support means the **federal lever, the courts, the money, and the media** carry more weight than lobbying the state.

Within a weekend you have moved from "we oppose the mine" to a target list: lodge a detailed submission and request the assessment documents; establish whether it was referred to the Commonwealth and force a referral if not; line up judicial-review and merits-review options with an EDO or pro-bono lawyer; check native-title and heritage engagement; identify the proponent's financiers and insurers; and prepare the wetland-and-species story for the press and the campaign. That is a campaign, not a complaint. Notice what the exercise did: it converted a diffuse fear into a short list of concrete, assignable tasks, each tied to a specific lever and a specific audience, and each of which can begin this week — several of them, like the submission and the referral request, before the assessment even closes. That is the difference the five questions make.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

Documentation is the foundation everything else stands on. A judge, a tribunal, a minister, a journalist, and a company's financiers all move on evidence, not indignation. Build your file in three layers.

Layer 1: The Official Record

Get the documents the decision rests on. Obtain the **environmental-impact statement or assessment**, on public exhibition or via the department; the **EPBC referral and any assessment documents** from the federal department; the **development approval or mining lease and its conditions**; the **licences**; and any native-title and heritage records. Much of this is public during assessment, and the rest is obtainable through **freedom-of-information** requests (the federal FOI Act and each state's FOI or GIPA law). The gap between what the assessment promises and what the science and the ground show is where cases are won. The Franklin campaign made the river's World Heritage value undeniable precisely by documenting it — the photographs of Rock Island Bend became a national symbol. Read the assessment not only for what it claims but for what it leaves out and quietly concedes in an appendix — the groundwater drawdown buried in a table, the offset that assumes habitat can be recreated, the cumulative impact it declines to model, the closure plan that depends on perpetual management. The official record is written to reassure; read against the grain, with a scientist's eye, it is often where the strongest objection is hiding in plain sight.

Layer 2: The Ground Truth

Document the reality the paper hides. Photograph and date the **actual footprint** — cleared ground, drill pads, watercourses, habitat — and geotag it. Log **incidents**: a spill, a fish kill, a land clearing beyond approval, dust or sediment. Capture **before-and-after** with your own photos and with freely available satellite imagery, which can show clearing, encroachment, and the true scale of operations. Record **species and habitat**: sightings and records of threatened species, mapped against the footprint, are central to a national-significance case, and community and citizen-science records carry real weight. Record **testimony**: Traditional Owners on Country and cultural heritage, farmers on the water and the land, and independent technical readings — a hydrologist's, an ecologist's, a heritage expert's — where you can get them.

Layer 3: The Defects and the Protected Values

Finally, document the failures of process and the legal lines the project crosses. Was the **assessment deficient** — understating the impact on a threatened species, a wetland, or the water? Was the project **not referred to the Commonwealth** when a national matter was engaged? Was the **public-exhibition process skipped or curtailed**? Does the footprint affect a **World Heritage or Ramsar or threatened-species value, native-title land, or Aboriginal cultural heritage**? Was **consultation with Traditional Owners inadequate**? Each defect is a separate ground — for a submission, a forced referral, judicial review, a merits appeal, or a heritage claim — and together they make a case that is hard to wave away. This is the layer that most often decides Australian fights, because here a project that looked approved is revealed to have skipped the federal trigger, understated a protected value, or failed the process the law requires. Work it methodically against each legal requirement: was a national matter properly identified and referred; was the significant-impact assessment honest; were the threatened species, wetlands, and water resources counted; was consultation with Traditional Owners real; was the public-exhibition process complete? Where the answer is no, capture the proof — because each 'no' is a separate ground a court, a tribunal, or the federal department can act on.

WHAT TO GATHER, AND WHERE TO FIND IT

This is the practical companion to Step 2: the specific records that decide Australian cases, and where to obtain them. You will not need every item; you will need the few that expose your project's particular defect.

The Approvals and Their Paper Trail

- **The environmental-impact statement / assessment report**, with the conditions. On public exhibition, or from the state planning or environment department. Read it for what it omits or understates — a threatened species, a wetland, the water, the cumulative and downstream effects, the closure plan.
- **The EPBC referral and assessment documents**, from the federal environment department's public register — whether the project was referred, the "controlled action" decision, the assessment approach, and the approval conditions. If it was never referred, that absence is itself a live issue.
- **The development approval or mining lease**, and its conditions, from the state authority.
- **The licences** (water, pollution, clearing) and their terms.
- **Native-title and heritage records** — the native-title status of the land (searchable via the National Native Title Tribunal), any Indigenous Land Use Agreements, and any cultural-heritage assessments and approvals.
- **The relevant instruments** — the planning scheme, any environmental-protection policies, and the listing of any affected World Heritage or Ramsar site or threatened species. Some values are especially powerful because they are nationally and internationally iconic — the **Great Barrier Reef** (both a World Heritage area and a marine park with its own protections), the wet tropics, the alpine and desert World Heritage places — and a documented, mapped impact on one of these engages not only the law but a public and an international audience that a developer cannot easily face down.

How to Get Them

Much of this is public during the assessment's **public-exhibition** period — the single most important window, because a submission lodged then is cheap, powerful, and preserves your standing to challenge later. For everything else, use **freedom of information**: the federal FOI Act and the state FOI or GIPA laws entitle you to government documents, and a well-targeted request naming the documents obliges a response. When an agency stalls or refuses, there are review rights, and a refusal is itself a documentable fact. Move early: the exhibition and referral windows are short and hard deadlines, and evidence or objections entered while they are open carry far more weight — and preserve far more of your rights — than the same point raised after the approval is signed. A practical tip: make FOI requests specific and dated, keep proof of when you sent them and when they were answered, and treat any refusal or delay not as a dead end but as a new, documentable fact and a trigger for the review rights the FOI laws provide. An agency that will not release its own assessment advice is telling you something worth knowing.

The Ground Evidence

- **Dated, geotagged photographs and video** of the footprint, the clearing, the watercourse, the habitat.
- **Satellite before-and-after** from freely available imagery, to show clearing, encroachment, or the true extent of operations.
- **Species and habitat records** — your own and citizen-science sightings of threatened species, mapped against the footprint; these can be decisive in a national-significance case.
- **Independent technical readings** — a hydrologist's, ecologist's, or heritage expert's assessment, and an independent review of the environmental-impact statement. The Environmental Defenders Offices and university partners can help source these.
- **Maps** overlaying the footprint on the wetland, the threatened-species habitat, the World Heritage or Ramsar boundary, the native-title determination, and the cultural-heritage sites — a single map showing a mine in threatened-species habitat or a Ramsar wetland is worth pages of argument.
- **Cultural and community testimony** — Traditional Owners on Country and heritage (led by the community's own authorities), and residents on water, land, and amenity.

Organise It So It Persuades

Keep a **master timeline** of every approval date, exhibition and referral window, incident, submission, and deadline — the spine of any court or tribunal case. Keep a **document index** so any fact can be sourced in seconds. And keep an **argument bank** (developed in a later section) that pairs each fact with what it proves, to whom. A well-ordered file is not bureaucracy; it is what lets a volunteer, a lawyer, a reporter, and a judge all see the same clear picture fast — and it

guards against the campaign's own worst enemy, a claim that cannot be sourced when the other side challenges it. In a fight that can run for years and pass through many hands, the community with the better-kept file is very often the one that prevails.

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO ORGANISE A CAMPAIGN THAT LASTS

Evidence and law do not stop projects on their own. Organised people do — sustained, visible, and credible over the months or years a fight takes. This is the step the Franklin did best: a disciplined, mass, national campaign that never let the issue die.

Phase 1: The Core

Start with a small, committed core — five to fifteen people who will carry the work. Where the project affects native-title land or cultural heritage, include and follow the **Traditional Owners and their representative bodies** from the start, because their rights and voice are the campaign's legal and moral spine. Assign roles: documentation, legal liaison, media, community liaison, financier-and-corporate research, and coordination. Agree on the goal — refusal, a forced federal assessment, a quashed approval, conditions, a bank or insurer walking away — and on what you will and will not accept.

Phase 2: The Coalition

Then widen deliberately. Bring in **local residents, farmers and graziers, Traditional Owners, scientists, students, health and faith groups, and small business**. Reach the **allies with capacity** — the **Environmental Defenders Offices** and pro-bono lawyers who run public-interest environmental cases; the national campaigning organisations (the Wilderness Society, the Australian Conservation Foundation, and issue-specific networks) whose experience, reach, and supporter base can amplify a local fight into a national one; scientists who can read the assessment; and the finance-focused groups that pressure banks and insurers. The Franklin's power came from exactly this breadth — a local blockade joined to a national movement and high-profile voices, turning a Tasmanian river into an issue every Australian had a view on. The same breadth has won modern fights. At **James Price Point (Walmadany)** in the Kimberley, a gas-hub project was abandoned in 2013 after sustained opposition from Goolarabooloo Traditional Owners and a national environmental campaign. In the **Great Australian Bight**, a determined community campaign — surfers, fishers, and coastal towns — helped drive successive oil companies to abandon deep-water drilling plans in 2020. Neither had a single silver bullet; each was a coalition that made the project more trouble than it was worth.

A worked coalition example. Facing a coal mine near a wetland, a handful of neighbours, a farmers' group, the Traditional Owners, and a few scientists form a core; they open a regular public meeting; they bring in an EDO lawyer and an independent ecologist; the council passes a resolution of concern; a national environmental organisation amplifies the fight and briefs the proponent's bank; and finance-focused campaigners press its insurer. No single group could have carried it; together they cover documentation, law, science, local and cultural legitimacy, national reach, and financial pressure.

Phase 3: Sustaining It

Campaigns die of burnout, not defeat. Meet on a rhythm. Give people concrete, finishable tasks. Mark small wins — a submission milestone, a document pried loose by FOI, a bank's statement, a hearing packed. Rotate the exhausting roles. And protect people: keep leadership collective and visible; document every threat or intimidation, which protects the person and becomes evidence; build outside links to the national organisations, the EDOs, and the press; and get advice early if anyone faces legal threats such as defamation. Sustaining a campaign — as the Franklin's years-long fight shows — is how these fights are won. Build in the human things that keep people together: welcome newcomers properly, share food, mark the anniversaries and the small victories, and make the campaign a community people want to belong to rather than only a duty. The fights that endure are the ones whose members would still show up for each other if the project vanished tomorrow — and that durability is itself what wears a proponent down.

Phase 4: Showing Strength

Numbers and legitimacy must be seen. Turn people out for hearings, council meetings, and rallies. Gather submissions — a mass, individual, substantive submission campaign during public exhibition carries real weight. Quality matters as much as quantity: a thousand identical form letters count for less than a few hundred individual submissions each raising a

specific, evidenced concern, because the decision-maker must consider the issues raised, not merely tally the numbers. Help people write their own — give them the facts and the grounds, and let them put them in their own words about their own place. Hold peaceful, well-documented actions — the marches, the vigils, and, where people choose it and understand the legal risks, the non-violent direct action that made the Franklin blockade a defining national image. The point is not spectacle; it is to demonstrate, to ministers, courts, financiers, and the press, that the opposition is broad, rooted, and not going away.

STEP 4: LEGAL CHALLENGES — THE FEDERAL TRIGGER, THE COURTS, AND ABORIGINAL RIGHTS

Australian law gives communities a real arsenal, and you do not need a final ruling to win with it: a referral, a submission, or a filing delays a project, forces disclosure, and creates leverage and headlines. Engage a lawyer or an Environmental Defenders Office early — but understand the tools yourself.

The Federal Trigger: the EPBC Act

Australia's most distinctive lever is the **EPBC Act**. If a project is likely to have a significant impact on a **matter of national environmental significance** — a World Heritage or National Heritage place, a Ramsar wetland, a nationally threatened species or ecological community, a migratory species, the Great Barrier Reef Marine Park, a nuclear action, or the water resources affected by a large coal or coal-seam-gas development (the so-called **water trigger**, added to the Act in 2013 precisely so that the impact of large coal and coal-seam-gas projects on groundwater and surface water must be federally assessed — a lever of real use to farming and rural communities) — it must be **referred** to the federal Environment Minister, assessed, and separately approved. This is a **second approval a state cannot grant and the Commonwealth can refuse or heavily condition**. Two moves flow from it: if the project engages a national matter but has **not been referred**, you can press the department to require a referral (and a project that proceeds without one where it was required is unlawful); and once it is in federal assessment, your submission and evidence go onto a federal record you can later test in court. This is the Franklin lever in its modern form. It still works. In 2024 a major canal-and-apartment development at **Toondah Harbour** in Queensland was effectively stopped at the federal level over its impact on the internationally protected **Moreton Bay Ramsar wetland** — a reminder that a genuine national matter, well evidenced, can defeat a project a state and a developer both wanted.

Judicial Review — with Open Standing

Federal approval decisions can be challenged by **judicial review** — a court examining whether the decision was made lawfully (proper process, relevant considerations, no legal error). Australia's distinctive advantage here is **section 487 of the EPBC Act**, which gives **extended standing**: an individual or organisation that has been engaged in environmental protection or conservation for the previous two years can bring the challenge, without proving they are personally affected. This is a genuinely open door, and the 2020 Samuel Review — no friend of red tape — found no evidence it was being abused and declined to narrow it. Judicial review does not re-decide the merits, but it can **quash an unlawful approval and send it back**, which delays a project and can force a better decision.

Merits Review in the States

In several states — most notably New South Wales, through its specialist **Land and Environment Court** — a community can seek **merits review**, in which the court stands in the shoes of the decision-maker and re-decides whether the project should be approved. This is more powerful than judicial review because it reaches the substance, not just the legality, and communities have won on it — including on **climate grounds**, where a court refused a coal mine partly because of its greenhouse-gas emissions. The landmark is the **Rocky Hill** case (*Gloucester Resources v Minister for Planning*, 2019), in which the Chief Judge of the New South Wales Land and Environment Court refused a coal mine near Gloucester on the merits, weighing its greenhouse-gas emissions — including the emissions from burning the coal — alongside its social and visual impacts. It showed that where merits review exists, a court can refuse a project for reasons a discretionary ministerial approval might have brushed aside, and that climate can be a lawful reason to say no. Check what merits-review rights your state offers; where they exist, they are among the strongest levers available.

Native Title and Cultural Heritage

Where a project affects **native-title land**, the **Native Title Act** gives native-title holders a **right to negotiate** over mining and certain developments — a process right that can secure delay, conditions, and agreements, though, this guide

is honest, **not a veto**. The right flows from the High Court's recognition of native title in *Mabo* (1992) and the **Native Title Act 1993** that followed: where native title exists or is claimed, proponents of mining and certain developments must negotiate in good faith with the native-title party, and disputes can go to the National Native Title Tribunal. Many projects proceed under **Indigenous Land Use Agreements**, which can carry real conditions and benefits — but the process can also be resolved against the community's wishes, which is why it works best combined with the environmental and heritage levers rather than relied on alone. Where it affects **Aboriginal or Torres Strait Islander cultural heritage**, state and federal heritage laws can protect significant places — but their weakness is real, as the lawful destruction of the Juukan Gorge rock shelters showed, so pursue heritage protection early and publicly, led always by the Traditional Owners themselves. Denied or inadequate consultation is a defect that can support a legal challenge and a powerful public case.

Where to File and With Whom

Judicial review of federal decisions runs in the **Federal Court**; merits and state matters run in the state environment or planning courts and tribunals; and constitutional questions can reach the **High Court**, which stopped the Franklin. Get help early: the **Environmental Defenders Offices** specialise in exactly these public-interest cases and can advise on standing, the right action, the costs risk, and the strongest ground before you file. A lawyer or EDO contacted while submissions are still open and evidence is fresh is worth far more than one contacted after the machinery arrives. On cost: public-interest environmental litigation can carry a risk of paying the other side's costs if you lose, which deters communities — but courts can and do make **protective or public-interest costs orders** in appropriate cases, extended standing removes one hurdle, and the EDOs and pro-bono firms carry many cases at no charge. Ask about all of this at the first meeting, so the costs risk is understood and managed rather than feared into inaction.

TURNING YOUR EVIDENCE INTO ARGUMENTS

You have a file of evidence. Now you must turn it into arguments — because the same fact persuades a judge, a tribunal, a minister, a journalist, a bank, and the community itself in different ways. Learning to translate your evidence for each audience is what lets a community reach every lever at once.

One Fact, Many Arguments

Take a single documented fact — say, that a coal mine was approved on an assessment that understated its impact on a nationally threatened species' habitat, and was never properly referred for federal assessment. That one fact becomes:

- **A federal-trigger argument:** the project affects a matter of national environmental significance and required referral and federal approval it did not lawfully obtain.
- **A legal argument:** the approval rests on a deficient assessment and a failure to follow the required process — grounds for judicial or merits review.
- **A conservation argument:** a listed threatened species loses critical habitat, unlawfully unassessed — the issue that mobilises scientists and the public.
- **A media argument:** a mine approved without properly assessing the endangered species it will wipe out — a clear, human-and-nature story with a stake.
- **A financier-and-insurer argument:** a project approved on a defective, legally vulnerable process is a legal, reputational, and financial risk to those who fund and insure it.

Same fact, five arguments, five audiences. Go through your strongest facts and, for each, ask what it proves to each audience. That table is your campaign's argument bank — and in Australia the twin arguments that most often move things are the **federal trigger** (a national matter improperly handled) and the **financier pressure** (a legally shaky project a bank or insurer should not touch). Keep the arguments anchored to the same documented facts, so a claim made to a reporter can be backed in a submission and a claim made to the court can be spoken plainly at a public meeting; consistency across audiences is itself persuasive. Learning to move fluently between these registers — the significant-impact test for the department, the endangered species for the scientist and the public, the legal risk for the bank, the human story for the reporter — is one of the most valuable skills a campaign develops, because it lets the same underlying evidence work every lever at once without ever straying from the facts.

Match the Argument to the Audience

The courts and tribunals want the breach or the merits framed precisely against the specific law — the EPBC significant-impact test, the assessment's deficiencies, the process failure, the threatened-species or heritage value — with the documents and the timeline that prove it.

Ministers and departments respond to legal risk, political cost, and a clear public voice — the forced referral, the mass submission, the exposure of having approved a defective project.

Journalists need a specific, verified, human-and-nature story with a hook: a named place, a threatened species or wetland, a documented defect, an imminent decision.

Banks, insurers, and customers respond to legal, reputational, and financial exposure — a contested project on a flawed and litigable process, tied to a named listed company.

The community itself needs to see that the fight is winnable and shared — the small wins, the growing campaign, the pressure mounting — so it lasts.

STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

Media is not vanity; it is a lever. Coverage raises the political cost of approval, reaches ministers, banks, and insurers your letters cannot, protects activists by making them visible, and can turn a local fight into a national cause. The Franklin proved it: the photographs, the "No Dams" campaign, and the wall-to-wall coverage made a remote Tasmanian river a question at every dinner table and every ballot box in the country.

Build the Story

Reporters need specifics: a named place and people, a dated and documented defect or value, a clear stake, and a live decision or deadline. "A mine threatens the environment" is not a story; "a coal company holds an approval to clear the last habitat of an endangered species, granted on an assessment that never properly counted it, with a federal decision due next month" is. Lead with your strongest verified fact, attach the map and the imagery, and offer a human voice — a farmer, a Traditional Owner, a scientist — and a striking image, as the Franklin's Rock Island Bend became.

Reach the Right Outlets

Work outward in rings. **Local and regional press** first, where the project is felt and councillors and state members read it. Then **national outlets** — the major mastheads, the national broadcaster, and the strong independent and investigative press — which carry federal political weight. Then, for a project touching a listed company, a bank, an insurer, or a globally resonant value (a World Heritage area, the Reef, a 46,000-year-old heritage site), **international and financial media**, which reach the money. Feed each ring what it needs, and let coverage in one pull in the next. Pay particular attention to the ring that reaches the **money**: Australian campaigns have had striking success getting banks and insurers to rule out coal and gas projects, and coverage in the financial press and briefings to responsible-investment bodies can reach a project where state politics cannot. It is worth identifying the specific investigative and environment reporters who cover mining, water, and Aboriginal affairs, and the finance journalists who cover the banks and insurers; a reporter who already knows the terrain needs less briefing and writes with more authority, and a single well-sourced investigation can move a bank or a minister more than a month of brief notices. Offer your strongest documented finding as an exclusive and you gain an ally, not just a mention. The Adani/Carmichael fight is the clearest example: even as the mine won its approvals, a sustained finance-focused campaign led dozens of banks, insurers, and contractors to publicly rule out involvement, driving up its cost and difficulty for years. A project may hold every permit and still struggle to be built if no one will fund, insure, or service it — and that pressure point sits entirely outside the approvals a friendly state controls.

Sustain It, Make It Safe and True

A single article changes little; a drumbeat changes decisions. Plan a sequence — the submission, the referral, the new document, the court filing, the bank's decision, the rally — so there is always a next hook, and build your own record (a simple site, a social feed, a growing album of dated photographs and video) so the story exists in a form journalists can pick up and that survives if posts are removed. Keep messaging disciplined, accurate, and consistent; one exaggeration handed to the other side can cost you credibility you cannot rebuild, and in Australia be alert to **defamation risk** when naming individuals or companies — stick scrupulously to what your documents prove, and get advice if in doubt. Verified, specific, human, and relentless — that is the coverage that shifts outcomes.

EMAILS & LETTERS

Written communications are how you lodge submissions, create a record, and reach the bodies that can act. Each does double duty: it asks for something and it documents that you asked. Keep copies of everything, and send important items so that receipt is provable. Below are adaptable templates for the situations you will meet most often. Keep them factual, specific, and grounded in the law and the evidence.

8A. Submission During Public Exhibition / Assessment

To: the assessing authority (state department or the federal environment department) **Subject:** Submission — objection to [project], [application/reference no.]

I make this submission objecting to [project] at [location]. My grounds, with evidence: (1) the environmental assessment [understates / omits] [impact — e.g. on the habitat of [threatened species] / on [wetland] / on water]; (2) [the project engages a matter of national environmental significance and requires federal assessment]; (3) [the process was deficient — inadequate consultation / curtailed exhibition]; (4) [native title / cultural heritage is affected and inadequately addressed]. I request that the [approval be refused / the action be assessed at the highest level / strict conditions be imposed], and that this submission be recorded and considered. [Attachments.]

8B. Request to Require an EPBC Referral / Federal Assessment

To: the federal environment department (compliance / assessments) **Subject:** Request re [project] — matter of national environmental significance not referred

[Project] at [location] is likely to have a significant impact on [a matter of national environmental significance — e.g. the nationally listed [species] / the [Ramsar wetland] / the [World Heritage place]], yet [it does not appear to have been referred under the EPBC Act / it has been referred but wrongly determined not a controlled action]. I attach evidence of the protected value and the likely significant impact, and request that the Department [require the proponent to refer the action / review the decision / consider that proceeding without approval would contravene the Act].

8C. Freedom of Information Request

To: [the state department (FOI/GIPA) or the federal department (FOI)] **Subject:** FOI request — [project]

Under the [Freedom of Information Act / GIPA Act], I request access to: the environmental-impact assessment and any peer reviews; the assessment reports and departmental briefings and advice on [project]; the approval and its conditions; the EPBC referral and controlled-action decision documents; and [any correspondence between the proponent and the department on [issue]]. I am happy to discuss scope to assist a timely decision, and note the public interest in disclosure.

8D. Letter Before Legal Action / Instructing an EDO

To: an Environmental Defenders Office or pro-bono counsel [copy: the decision-maker] **Subject:** [Project] — potential judicial / merits review

As [affected residents / a conservation group with standing under s487 / Traditional Owners], we believe the [federal approval / state development approval] for [project] is [unlawful / wrong on the merits] because [the significant impact on a national matter was not properly assessed / the assessment was deficient / the process failed / consultation was inadequate]. We attach our timeline, the assessment, and our technical evidence, and seek your advice on [judicial review in the Federal Court / merits review in the Land and Environment Court], the costs risk, and the strongest ground. We are ready to act within the applicable time limits.

8E. Referral to an Auditor-General / Ombudsman / Integrity Body

To: the Auditor-General [or the Ombudsman / an integrity or anti-corruption commission] **Subject:** Referral — [irregularity / maladministration], [project]

We bring to your attention [the failures] connected with [project]: [sourced facts — an approval granted on a deficient assessment, a national matter not referred, a process curtailed, officials who acted or failed to act, undisclosed interests]. We request that you [audit the decision and any public funding / investigate the administrative process / consider whether an inquiry is warranted], and we attach the documentation.

8F. Letter to a Council / Minister / Member of Parliament

To: [the council / the relevant Minister / a local member] **Subject:** [Project] — [refusal / referral / conditions] sought

We are residents of [place] writing about [project]. Our concern, briefly: [one or two specific grounds — a threat to a wetland and threatened species, a national matter not properly assessed, a defective process]. Within your responsibility, we ask you to [refuse or condition the approval / require federal assessment / pass a resolution of concern / raise this with the assessing authority]. [If true:] [#] residents and [#] organisations share this concern, and the matter carries legal and political risk. We welcome a meeting and can share our full evidence.

8G. Letter to a Financier / Insurer / Customer

To: [the bank / insurer / offtake customer of the proponent] **Subject:** [Project] — legal and reputational risk

We write regarding your [financing / insurance / purchasing] relationship with [company] in connection with [project]. The project [one-line stake — e.g. "would clear the last habitat of an endangered species and faces federal-approval and legal challenges"], and our documented concerns include [the deficient assessment, the national matter improperly handled, the pending legal action]. We ask you to consider the environmental, legal, and reputational risk, and whether your own [environmental and social policies / net-zero commitments] are consistent with supporting it. We are happy to provide our full evidence.

8H. Email to a Reporter (Regional, National, or International)

To: [journalist] **Subject:** Story tip: [specific finding] — [the place / the species]

I follow your coverage of [beat]. We have something your readers should know, with a clear news hook: [documents] show [quantified finding — e.g. "a coal mine was approved to clear the last known habitat of [endangered species], on an assessment that never properly counted it, and a federal decision is due [date]"]. It is specific, verified, and it echoes the Franklin. I can share the full file and connect you with affected residents, a Traditional Owner, and a scientist. Could we talk this week?

Using the Templates Well

Send important communications so that receipt is provable, and log every one in your timeline — above all the exhibition and referral windows and any submission or appeal deadlines, which are strict. Keep them factual, specific, and grounded in the law and the evidence; attach your documentation and technical readings; and route them, where you can, through or with the campaign, the Traditional Owners, your EDO or pro-bono lawyer, and your national and financier-facing allies. The reply — or the silence — becomes part of your record, and in Australia that record feeds the levers that matter most: the federal trigger, the courts, the protected values, the money, and the public.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can run a long campaign. With a few hours a week you can still do real damage to a bad project. In rough order of impact for the effort:

- 1. Check for the federal trigger — first.** Establish whether the project affects a matter of national environmental significance (a World Heritage or Ramsar site, a nationally threatened species, the Reef). If it does, it needs federal assessment — and if it was never referred, that is a powerful, cheap point to press.
- 2. Lodge a submission during public exhibition.** One substantive submission (8A) puts your objection and evidence on the record, preserves your standing to challenge later, and — multiplied across a community — carries real weight. This is the cheapest high-value move, but the window is short, so act now.
- 3. Get the documents — exhibition and FOI.** The assessment is public during exhibition; the rest comes via FOI (8C). The gap between what the assessment claims and what the science shows is usually where the case is.
- 4. Force the referral if it was skipped.** A short, evidenced request to the federal department (8B) can compel an assessment the proponent tried to avoid — one of the strongest low-cost levers Australia offers.
- 5. Call an Environmental Defenders Office.** The EDOs run public-interest environmental cases and can tell you fast whether judicial or merits review is realistic, and what the deadlines and costs risk are (8D).
- 6. Follow the money.** Identify the proponent's bank, insurer, and customers, and write (8G): Australian financiers have walked away from projects under exactly this pressure.

7. Tell the story. A threatened species, a wetland, or a heritage place is a national story; one accurate tip (8H) can reach ministers and financiers a submission never will.

Do only the first three and you will have checked the federal trigger, put your objection on the record while it counts, and forced out the documents that reveal the defect — the exact foundation a bigger fight is built on. Then come back and read the rest. Even the shortest version has a spine: check the trigger, lodge the submission, get the documents. Everything else in this guide amplifies those three moves. A community that does only them has already done more than most projects' opponents ever manage — and has often done enough to force a proper assessment, expose a defect, and put a decision-maker on notice that this project will be watched, tested, and fought.

WHEN THE SYSTEM IS TILTED

Australia's system is tilted in specific ways you must understand, so you neither waste effort nor miss the levers that still work.

Where the Tilt Shows

The tilt runs through a **weak national law**: the EPBC Act is largely **self-reporting**, lets proponents self-assess whether they even need to refer, gives the Minister **wide discretion**, and approves the overwhelming majority of projects put to it — its own 2020 review found it "not delivering for the environment." That review, led by Professor Graeme Samuel, recommended enforceable National Environmental Standards and an independent regulator, and the reforms that followed have begun — slowly and contentiously — to introduce national standards and a national environment protection agency. Whether they strengthen protection or mainly streamline approvals is still being fought over, so check the current state of the law when you act: the framework in this guide is the enduring structure, but the detail of the federal regime is genuinely in motion. **State governments** frequently champion mining and gas and run the primary assessment. **Native title is a right to negotiate, not a veto**, and **cultural-heritage protection is patchy** — the lawful destruction of the 46,000-year-old Juukan Gorge shelters is the standing proof. In 2020 a mining company legally blew up two rock shelters in the Juukan Gorge in Western Australia that held evidence of 46,000 years of continuous human occupation, acting under a heritage consent granted years earlier that the law gave the Traditional Owners no effective way to revisit. The national outcry and the parliamentary inquiry that followed drove promises of reform, but the episode remains the clearest warning that a heritage approval, once given, can be nearly impossible to stop — so the time to act on heritage is early, loudly, and before any consent is locked in. There is **no climate trigger**, so a project's emissions are often formally irrelevant to federal approval. And well-resourced proponents can outspend and outlast a community, and sometimes reach for **defamation** to chill criticism. Where this tilt bites, the formal process gives less than it should — but real levers still reach past it.

What Still Works — And Some Is Distinctive

The decisive point is that even where the system tilts, real and distinctive levers reach past it.

The federal trigger cannot be waved away. Where a genuine matter of national environmental significance is engaged, the project needs federal approval no state can grant, and the Commonwealth can refuse or condition it — the Franklin lever, still live.

Open standing keeps the courthouse door open. Section 487 lets a conservation group into court to test a federal decision, whatever the Minister wants, and merits review in states like New South Wales can re-decide a project on its substance.

The protected values hold. World Heritage, Ramsar, and threatened-species listings are legal facts a project must lawfully account for, provable on a map and in the records.

The money can be reached. Banks, insurers, and customers answer to a public and to their own policies, and Australian campaigns have repeatedly persuaded them to walk away from coal and gas.

The campaigning tradition is deep. The EDOs, the national organisations, and a strong free press give a community reach, law, and voice a proponent cannot switch off.

The Honest Frame

So the honest frame for Australia is real but demanding. The federal trigger, open standing, merits review, the protected values, financier pressure, and a deep campaigning tradition give a community genuine — in places distinctive — power,

as the Franklin proved and as modern anti-coal and anti-gas campaigns keep proving. But the national law is weak, states push projects, native title is not a veto, heritage protection can fail catastrophically, and there is no climate trigger. So diagnose the tilt honestly: lean on the federal trigger, the courts, the protected values, and the money, not on a friendly state; document every defect and value; protect your people and get early advice on legal threats; treat a win as something to be defended, not banked; and think in terms of delay, conditions, exposure, and a proponent worn down as much as an outright, permanent stop. In a fight with no federal trigger that a state champions, that is often what winning looks like — and it is real.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Sometimes a project advances not despite the evidence but because someone is being paid, pressured, or improperly favoured. Undue influence changes your strategy: you stop trying to persuade a captured decision-maker and start exposing and going around them.

How to Tell

Look for the signatures of capture. An **approval granted or an assessment waved through against the evidence**, over strong documented objections and without addressing them, suggests more than error. **Undisclosed interests, donations, or revolving-door ties** between the proponent and the deciders; **assessments curtailed or referrals dodged; conditions never enforced** despite obvious breaches; and **decisions timed to avoid scrutiny** all point the same way. And **pressure or legal threats aimed at the campaign's leaders** are themselves a signature of something wrong. One anomaly may be incompetence; a pattern is capture. Corruption tends to leave its fingerprints in the sequence of events — lay your timeline beside the official one and watch for approvals that cluster around a donation, a meeting, or a change of official.

Who Can Be Captured — and Who Is Harder

Be clear-eyed about where undue influence reaches. A **state department, a single minister, or a curtailed assessment** can be pressured or captured. But the Australian system has bodies harder to reach that a captured state arrangement cannot easily control: the **Federal Court and the High Court**; the **Auditors-General** and parliamentary committees; the **integrity and anti-corruption commissions** (state and, now, federal); the **federal trigger** the state cannot waive; the **EDOs and the national press**; and international attention. Undue influence thrives on darkness and on staying local; your task is to lift the matter out of the captured node and into the light and the higher, cleaner fora.

What to Do

Do not confront and tip off the captured decision-maker. Instead, **document the anomaly precisely** — the dates, the interests, the donations, the ignored objections, the missing enforcement — and refer it, with evidence, to the bodies above (8E): the Auditor-General, the ombudsman, the relevant integrity or anti-corruption commission, and the press. Pair the referral with the federal trigger, the court challenge, and the financier pressure, so the wrongdoing and the harm are exposed together. Exposure has its own momentum: an audit finding or an integrity inquiry creates a record other bodies must reckon with, and a referral dodged or an assessment shown to be curtailed collapses the process the approval stood on. And protect yourself above all — get legal advice, coordinate with your campaign and legal leads, keep the work collective and documented, and never carry it alone.

INTEGRATION & TIMELINE

The five steps win when they run together. Here is how they fit across the life of a fight.

Early (Weeks 0-8): Identify, Organise, and Document

Pin down the project, the approvals, and the stage (Step 1). Form the core and the coalition, with the Traditional Owners where their land or heritage is engaged (Step 3). Begin the file — get the assessment on exhibition, request documents by FOI (Step 2 and What to Gather). And move fast on what will not wait: **lodge submissions during public exhibition**, and **check the federal trigger and force a referral** if the project skipped it. Contact an EDO now, before the strict deadlines close. This early phase is cheap, and it sets up everything else.

Middle (Months 2-18): Escalate on Every Front

Grow the campaign and show strength (Step 3). Turn your evidence into arguments for each audience (Turning Evidence). Escalate legally as the facts warrant — judicial review of a federal decision, merits review in the states, a heritage or native-title process (Step 4). Refer the process and the officials to the auditors and integrity bodies where warranted (8E). Press the proponent's financiers and insurers (8G). Build the media drumbeat from local to national to financial (Step 5). Each front feeds the others: a forced referral is a headline, a headline is pressure, pressure moves a minister or a bank, and a disclosed document strengthens the court case. Do the cheap, time-sensitive things first, because a missed exhibition window or a lapsed deadline cannot be recovered.

Later (Months 6-48+): Sustain, Win the Line, and Redefine the Win

Sustain the campaign against burnout; protect your people; keep the record and the coverage alive. Pursue the durable prizes — a **refused or heavily conditioned approval**, a **federal knock-back**, a **bank or insurer walking away**, a **protected value locked in**. And judge success honestly. Sometimes it is an outright, permanent stop — an approval refused, a project abandoned, as the Franklin was stopped for good. More often, in a fight without a federal trigger, it is a project **delayed for years, shrunk, conditioned, stripped of finance, or so exposed that the proponent walks away**. That is not a lesser victory. It is what winning usually looks like, and it is worth every effort it takes.

The Shape of a Campaign

WEEKS 0-8	Identify Form the coalition Document Submit at exhibition Check the federal trigger Get an EDO
MONTHS 2-18	Grow the campaign Arguments Judicial / merits review Referrals Financier pressure Media
MONTHS 6-48+	Sustain Protect people Win the refusal / conditions / finance withdrawal Redefine the win

FINAL ASSESSMENT

Australia gives communities a genuinely powerful — and, in places, distinctive — set of tools, and the honest measure of this guide is how squarely it faces both their strength and their limits.

The strengths are real and distinctive. A community can reach the **federal trigger** — the power that stopped the Franklin — where a matter of national environmental significance is engaged, forcing an assessment and approval no state can grant. It can walk through an unusually **open courthouse door**, with extended standing to seek judicial review, and in several states can win **merits review** that re-decides a project on its substance, including on climate. It can stand on **protected values** — World Heritage, Ramsar, threatened species — that are legal facts a project must account for. It can invoke **native-title and cultural-heritage** processes, led by Traditional Owners. It can reach the **money** — the banks and insurers that have walked away from coal and gas under public pressure. And it can plug into a **deep campaigning tradition** — the EDOs, the national organisations, a free press — that turned a remote river into a national cause.

The limits are just as real. The national law is weak and self-reporting; the Minister has wide discretion and approves most projects; native title is not a veto; heritage protection failed catastrophically at Juukan Gorge; states champion development; there is no climate trigger; and proponents can outspend, outlast, and sometimes legally threaten a community. No guide should pretend otherwise. Adani was fought through the courts for years and still built; that is the condition of this fight, not its exception.

So the realistic promise is this: **check the federal trigger early, document every defect and protected value, use open standing and merits review, invoke the rights and the protected values, reach the money, and reach the public — and run all of it together, protecting your people and getting early legal advice**. Do that, and even against a state-backed project you can force delay, conditions, exposure, lost finance, and a proponent worn down — and sometimes an outright stop. Do it as the Franklin did, with a disciplined national campaign joined to a decisive legal lever, and you can win a victory that saves not only your own place but sets a line others will stand on.

A last word on endurance. These fights are won in years, not weeks, and the proponent is counting on your exhaustion. Its advantage is money and patience; yours is legitimacy, numbers, the law's open doors, and the fact that you are defending your home and your Country while it is merely pursuing a return. Play to that. Keep the file, keep the campaign, keep the record and the coverage alive, protect your people, and treat every delay, every disclosure, every referral, every bank that walks, and every headline as a brick in a wall that grows too high and too costly for the project to climb.

The tools are here, and Australia's history proves they work: a wild river that a state was determined to drown still runs free, because ordinary people organised, endured, and reached the one lever that mattered. What decides the outcome is method, endurance, and courage — and those you supply. Begin today, begin cheaply, and build from there. Communities

before you have stopped what looked unstoppable — a blockade on a riverbank, a nation at a ballot box, a bank that finally said no, a coalition that made a project more trouble than it was worth. The tools are proven and the doors are open; what has ever been missing in the fights that were lost was not the law but the organisation and the endurance to use it. So can yours.